

THOMAS, J., concurring in judgment

JUSTICE KAGAN, concurring in part.

I fully agree with the Court’s reasons for allowing the Bladensburg Peace Cross to remain as it is, and so join Parts I, II–B, II–C, III, and IV of its opinion, as well as JUSTICE BREYER’s concurrence. Although I agree that rigid application of the *Lemon* test does not solve every Establishment Clause problem, I think that test’s focus on purposes and effects is crucial in evaluating government action in this sphere—as this very suit shows. I therefore do not join Part II–A. I do not join Part II–D out of perhaps an excess of caution. Although I too “look[] to history for guidance,” *ante*, at 60 (plurality opinion), I prefer at least for now to do so case-by-case, rather than to sign on to any broader statements about history’s role in Establishment Clause analysis. But I find much to admire in this section of the opinion—particularly, its emphasis on whether longstanding monuments, symbols, and practices reflect “respect and tolerance for differing views, an honest endeavor to achieve inclusivity and nondiscrimination, and a recognition of the important role that religion plays in the lives of many Americans.” *Ante*, at 63. Here, as elsewhere, the opinion shows sensitivity to and respect for this Nation’s pluralism, and the values of neutrality and inclusion that the First Amendment demands.

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The Establishment Clause states that “Congress shall make no law respecting an establishment of religion.” U. S. Const., Amdt. 1. The text and history of this Clause suggest that it should not be incorporated against the States. Even if the Clause expresses an individual right enforceable against the States, it is limited by its text to “law[s]” enacted by a legislature, so it is unclear whether the Bladensburg Cross would implicate any incorporated right. And even if it did, this religious display does not involve the type of actual legal coercion that was a hallmark of historical

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establishments of religion. Therefore, the Cross is clearly constitutional.

I

As I have explained elsewhere, the Establishment Clause resists incorporation against the States. *Town of Greece v. Galloway*, 572 U. S. 565, 604–607 (2014) (opinion concurring in part and concurring in judgment); *Elk Grove Unified School Dist. v. Newdow*, 542 U. S. 1, 49–51 (2004) (opinion concurring in judgment); *Van Orden v. Perry*, 545 U. S. 677, 692–693 (2005) (concurring opinion); *Zelman v. Simmons-Harris*, 536 U. S. 639, 677–680 (2002) (same). In *Everson v. Board of Ed. of Ewing*, 330 U. S. 1, 15 (1947), the Court “casually” incorporated the Clause with a declaration that because the Free Exercise Clause had been incorporated, “[t]here is every reason to give the same application and broad interpretation to the ‘establishment of religion’ clause.” *Town of Greece*, 572 U. S., at 607, n. 1 (opinion of THOMAS, J.). The Court apparently did not consider that an incorporated Establishment Clause would prohibit exactly what the text of the Clause seeks to protect: state establishments of religion. See *id.*, at 605–606.

The Court’s “inattention” to the significant question of incorporation “might be explained, although not excused, by the rise of popular conceptions about ‘separation of church and state’ as an ‘American’ constitutional right.” *Id.*, at 608, n. 1; see P. Hamburger, *Separation of Church and State* 454–463 (2002); see also *id.*, at 391–454 (tracing the role of nativist sentiment in the rise of “the modern myth of separation” as an American ideal). But an ahistorical generalization is no substitute for careful constitutional analysis. We should consider whether any longstanding right of citizenship restrains the States in the establishment context. See generally *McDonald v. Chicago*, 561 U. S. 742, 805–858, and n. 20 (2010) (THOMAS, J., concurring in part and concurring in judgment).

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Further confounding the incorporation question is the fact that the First Amendment by its terms applies only to “law[s]” enacted by “Congress.” Obviously, a memorial is not a law. And respondents have not identified any specific law they challenge as unconstitutional, either on its face or as applied. Thus, respondents could prevail on their establishment claim only if the prohibition embodied in the Establishment Clause was understood to be an individual right of citizenship that applied to more than just “law[s]” “ma[de]” by “Congress.”¹

II

Even if the Clause applied to state and local governments in some fashion, “[t]he mere presence of the monument along [respondents’] path involves no coercion and thus does not violate the Establishment Clause.” *Van Orden*, 545 U. S., at 694 (opinion of THOMAS, J.). The *sine qua non* of an establishment of religion is “‘actual legal coercion.’” *Id.*, at 693. At the founding, “[t]he coercion that was a hallmark of historical establishments of religion was coercion of religious orthodoxy and of financial support by force of law and threat of penalty.” *Lee v. Weisman*, 505 U. S. 577, 640 (1992) (Scalia, J., dissenting) (emphasis deleted). “In a typical case, attendance at the established church was mandatory, and taxes were levied to generate church revenue. Dissenting ministers were barred from preaching, and political participation was limited to members of the established church.” *Town of Greece, supra*, at 608 (opinion of THOMAS, J.) (citation omitted). In an action claiming an unconstitutional establishment of religion, the plaintiff must demonstrate that he was actually coerced by government conduct that shares

¹ In my view, the original meaning of the phrase “Congress shall make no law” is a question worth exploring. Compare G. Lawson & G. Seidman, *The Constitution of Empire* 42 (2004) (arguing that the First Amendment “applies only to Congress”), with *Shrum v. Coweta*, 449 F. 3d 1132, 1140–1143 (CA10 2006) (McConnell, J.) (arguing that it is not so limited).

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the characteristics of an establishment as understood at the founding.²

Here, respondents briefly suggest that the government's spending their tax dollars on maintaining the Bladensburg Cross represents coercion, but they have not demonstrated that maintaining a religious display on public property shares any of the historical characteristics of an establishment of religion. The local commission has not attempted to control religious doctrine or personnel, compel religious observance, single out a particular religious denomination for exclusive state subsidization, or punish dissenting worship. Instead, the commission has done something that the founding generation, as well as the generation that ratified the Fourteenth Amendment, would have found commonplace: displaying a religious symbol on government property. See Brief for Becket Fund for Religious Liberty as *Amicus Curiae* 14–22. Lacking any characteristics of “the coercive state establishments that existed at the founding,” *Town of Greece*, 572 U. S., at 608 (opinion of THOMAS, J.), the Bladensburg Cross is constitutional.

The Bladensburg Cross is constitutional even though the cross has religious significance as a central symbol of Christianity. Respondents' primary contention is that this characteristic of the Cross makes it “sectarian”—a word used in respondents' brief more than 40 times. Putting aside the fact that Christianity is not a “sect,” religious displays or speech need not be limited to that which a “judge considers to be nonsectarian.” *Id.*, at 582 (majority opinion). As the Court has explained, “[a]n insistence on nonsectarian” reli-

² Of course, cases involving state or local action are not strictly speaking Establishment Clause cases, but instead Fourteenth Amendment cases about a privilege or immunity of citizenship. It is conceivable that the salient characteristics of an establishment changed by the time of the Fourteenth Amendment, see *Town of Greece v. Galloway*, 572 U. S. 565, 607, 609–610 (2014) (THOMAS, J., concurring in part and concurring in judgment), but respondents have presented no evidence suggesting so.

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gious speech is inconsistent with our Nation’s history and traditions. *Id.*, at 578–580; see *id.*, at 595 (ALITO, J., concurring). Moreover, requiring that religious expressions be nonsectarian would force the courts “to act as supervisors and censors of religious speech.” *Id.*, at 581 (majority opinion). Any such effort would find courts “trolling through . . . religious beliefs” to decide what speech is sufficiently generic. *Mitchell v. Helms*, 530 U. S. 793, 828 (2000) (plurality opinion). And government bodies trying to comply with the inevitably arbitrary decisions of the courts would face similarly intractable questions. See *Town of Greece, supra*, at 596 (opinion of ALITO, J.).³

³ Another reason to avoid a constitutional test that turns on the “sectarian” nature of religious speech is that the Court has suggested “formally dispens[ing]” with this factor in related contexts. *Mitchell*, 530 U. S., at 826 (plurality opinion). Among other reasons, the “sectarian” test “has a shameful pedigree” that originated during the 1870s when Congress considered the Blaine Amendment, “which would have amended the Constitution to bar any aid to sectarian institutions.” *Id.*, at 828. “Consideration of the amendment arose at a time of pervasive hostility to the Catholic Church and to Catholics in general, and it was an open secret that ‘sectarian’ was code for ‘Catholic.’” *Ibid.* This anti-Catholic hostility may well have played a role in the Court’s later decisions. *Everson v. Board of Ed. of Ewing*, 330 U. S. 1 (1947), for example, was written by Justice Black, who would later accuse Catholics who advocated for textbook loans to religious schools of being “powerful sectarian religious propagandists . . . looking toward complete domination and supremacy of their particular brand of religion.” *Board of Ed. of Central School Dist. No. 1 v. Allen*, 392 U. S. 236, 251 (1968) (Black, J., dissenting). Even by the time of *Lemon v. Kurtzman*, 403 U. S. 602 (1971), some Justices were still “influenced by residual anti-Catholicism and by a deep suspicion of Catholic schools.” Laycock, *The Underlying Unity of Separation and Neutrality*, 46 Emory L. J. 43, 58 (1997). Indeed, the Court’s opinion in *Lemon* “relied on what it considered to be inherent risks in religious schools despite the absence of a record in *Lemon* itself and despite contrary fact-finding by the district court in the companion case.” Laycock, *supra*, at 58 (footnote omitted); see generally W. Ball, *Mere Creatures of the State?*, 35–40 (1994). And in his concurring opinion, Justice Douglas (joined by Justice Black) repeatedly quoted an anti-Catholic book, including for the proposition that, in Catholic parochial schools, “[t]he whole education of the child

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III

As to the long-discredited test set forth in *Lemon v. Kurtzman*, 403 U. S. 602, 612–613 (1971), and reiterated in *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U. S. 573, 592–594 (1989), the plurality rightly rejects its relevance to claims, like this one, involving “religious references or imagery in public monuments, symbols, mottos, displays, and ceremonies.” *Ante*, at 51, and n. 16. I agree with that aspect of its opinion. I would take the logical next step and overrule the *Lemon* test in all contexts. First, that test has no basis in the original meaning of the Constitution. Second, “since its inception,” it has “been manipulated to fit whatever result the Court aimed to achieve.” *McCreary County v. American Civil Liberties Union of Ky.*, 545 U. S. 844, 900 (2005) (Scalia, J., dissenting); see *Lamb’s Chapel v. Center Moriches Union Free School Dist.*, 508 U. S. 384, 398–399 (1993) (Scalia, J., concurring in judgment). Third, it continues to cause enormous confusion in the States and the lower courts. See generally *Utah Highway Patrol Assn. v. American Atheists, Inc.*, 565 U. S. 994 (2011) (THOMAS, J., dissenting from denial of certiorari). In recent decades, the Court has tellingly refused to apply *Lemon* in the very cases where it purports to be most useful. See *Utah Highway*, *supra*, at 997–998 (collecting cases); *ante*, at 49 (plurality opinion) (same). The obvious explanation is that *Lemon* does not provide a sound basis for judging Establishment Clause claims. However, the court below “s[aw] fit to apply *Lemon*.” 874 F. 3d 195,

is filled with propaganda.’” 403 U. S., at 635, n. 20 (quoting L. Boettner, *Roman Catholicism* 360 (1962)); see 403 U. S., at 636. The tract said that Hitler, Mussolini, and Stalin learned the “secret[s] of [their] success” in indoctrination from the Catholic Church, and that “an undue proportion of the gangsters, racketeers, thieves, and juvenile delinquents who roam our big city streets come . . . from the [Catholic] parochial schools,” where children are taught by “brain-washed,” “ignorant European peasants.” Boettner, *supra*, at 363, 370–372.

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205 (CA4 2017). It is our job to say what the law is, and because the *Lemon* test is not good law, we ought to say so.

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Regrettably, I cannot join the Court’s opinion because it does not adequately clarify the appropriate standard for Establishment Clause cases. Therefore, I concur only in the judgment.

JUSTICE GORSUCH, with whom JUSTICE THOMAS joins, concurring in the judgment.

The American Humanist Association wants a federal court to order the destruction of a 94-year-old war memorial because its members are offended. Today, the Court explains that the plaintiffs are not entitled to demand the destruction of longstanding monuments, and I find much of its opinion compelling. In my judgment, however, it follows from the Court’s analysis that suits like this one should be dismissed for lack of standing. Accordingly, while I concur in the judgment to reverse and remand the court of appeals’ decision, I would do so with additional instructions to dismiss the cases.

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The Association claims that its members “regularly” come into “unwelcome direct contact” with a World War I memorial cross in Bladensburg, Maryland, “while driving in the area.” 874 F. 3d 195, 203 (CA4 2017). And this, the Association suggests, is enough to allow it to insist on a federal judicial decree ordering the memorial’s removal. Maybe, the Association concedes, others who are less offended lack standing to sue. Maybe others still who are equally affected but who come into contact with the memorial too infrequently lack standing as well. See Tr. of Oral Arg. 48–49. But, the Association assures us, its members are offended enough—and with sufficient frequency—that they may sue.

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This “offended observer” theory of standing has no basis in law. Federal courts may decide only those cases and controversies that the Constitution and Congress have authorized them to hear. And to establish standing to sue consistent with the Constitution, a plaintiff must show: (1) injury-in-fact, (2) causation, and (3) redressability. The injury-in-fact test requires a plaintiff to prove “an invasion of a legally protected interest which is (a) concrete and particularized . . . and (b) actual or imminent, not conjectural or hypothetical.” *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560 (1992) (internal quotation marks omitted).

Unsurprisingly, this Court has already rejected the notion that offense alone qualifies as a “concrete and particularized” injury sufficient to confer standing. We could hardly have been clearer: “The presence of a disagreement, however sharp and acrimonious it may be, is insufficient by itself to meet Art. III’s requirements.” *Diamond v. Charles*, 476 U.S. 54, 62 (1986). Imagine if a bystander disturbed by a police stop tried to sue under the Fourth Amendment. Suppose an advocacy organization whose members were distressed by a State’s decision to deny someone else a civil jury trial sought to complain under the Seventh Amendment. Or envision a religious group upset about the application of the death penalty trying to sue to stop it. Does anyone doubt those cases would be rapidly dispatched for lack of standing? Cf. *Whitmore v. Arkansas*, 495 U.S. 149, 151 (1990) (holding that a third party does not have “standing to challenge the validity of a death sentence imposed on a capital defendant who has elected to forgo his right of appeal”).

It’s not hard to see why this Court has refused suits like these. If individuals and groups could invoke the authority of a federal court to forbid what they dislike for no more reason than they dislike it, we would risk exceeding the Judiciary’s limited constitutional mandate and infringing on powers committed to other branches of government. Courts would start to look more like legislatures, responding to so-

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cial pressures rather than remedying concrete harms, in the process supplanting the right of the people and their elected representatives to govern themselves. See, e. g., *Clapper v. Amnesty Int’l USA*, 568 U. S. 398, 408 (2013) (“The law of Article III standing, which is built on separation-of-powers principles, serves to prevent the judicial process from being used to usurp the powers of the political branches”); *Warth v. Seldin*, 422 U. S. 490, 500 (1975) (without standing requirements “courts would be called upon to decide abstract questions of wide public significance even though other governmental institutions may be more competent to address the questions”); *Hein v. Freedom From Religion Foundation, Inc.*, 551 U. S. 587, 635–636 (2007) (Scalia, J., concurring in judgment) (“To permit a complainant who has no concrete injury to require a court to rule on important constitutional issues in the abstract would create the potential for abuse of the judicial process, distort the role of the Judiciary in its relationship to the Executive and the Legislature and open the Judiciary to an arguable charge of providing “government by injunction””).

Proceeding on these principles, this Court has held offense alone insufficient to convey standing in analogous—and arguably more sympathetic—circumstances. Take *Allen v. Wright*, 468 U. S. 737 (1984), where the parents of African-American schoolchildren sued to compel the Internal Revenue Service to deny tax-exempt status to schools that discriminated on the basis of race. The parents claimed that their children suffered a “stigmatic injury, or denigration” when the government supported racially discriminatory institutions. *Id.*, at 754. But this Court refused to entertain the case, reasoning that standing extends “only to those persons who are personally denied equal treatment by the challenged discriminatory conduct.” *Id.*, at 755 (internal quotation marks omitted). Now put the teachings there alongside the Association’s standing theory here and you get this utterly unjustifiable result: An African-American offended by

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a Confederate flag atop a state capitol would lack standing to sue under the Equal Protection Clause, but an atheist who is offended by the cross on the same flag could sue under the Establishment Clause. Who really thinks *that* could be the law? See Brief for Becket Fund for Religious Liberty as *Amicus Curiae* 34–35.

Consider, as well, the Free Exercise Clause. In *Harris v. McRae*, 448 U. S. 297 (1980), this Court denied standing to a religious group that raised a free exercise challenge to federal restrictions on abortion funding because “the plaintiffs had ‘not contended that the [statute in question] in any way coerce[d] them *as individuals* in the practice of their religion.’” *Id.*, at 321, n. 24. Instead, the Court has held, a free exercise plaintiff generally must “show that his good-faith religious beliefs are hampered before he acquires standing to attack a statute under the Free-Exercise Clause.” *Braunfeld v. Brown*, 366 U. S. 599, 615 (1961) (Brennan, J., concurring and dissenting). And if standing doctrine has such bite under the Free Exercise Clause, it’s difficult to see how it could be as toothless as plaintiffs suppose under the neighboring Establishment Clause.

In fact, this Court has already expressly rejected “offended observer” standing under the Establishment Clause itself. In *Valley Forge Christian College v. Americans United for Separation of Church and State, Inc.*, 454 U. S. 464 (1982), the plaintiffs objected to a transfer of property from the federal government to a religious college, an action they had learned about through a news release. This Court had little trouble concluding that the plaintiffs lacked standing to challenge the transfer, explaining that “the psychological consequence presumably produced by observation of conduct with which one disagrees” is not an injury-in-fact “sufficient to confer standing under Art. III.” *Id.*, at 485. To be sure, this Court has sometimes resolved Establishment Clause challenges to religious displays on the merits without first addressing standing. But as this Court has held, its own failure to consider standing cannot be mistaken

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as an endorsement of it: “[D]rive-by jurisdictional rulings of this sort” carry “no precedential effect.” *Steel Co. v. Citizens for Better Environment*, 523 U. S. 83, 91 (1998).

Offended observer standing is deeply inconsistent, too, with many other longstanding principles and precedents. For example, this Court has consistently ruled that “‘generalized grievances’ about the conduct of Government” are insufficient to confer standing to sue. *Schlesinger v. Reservists Comm. to Stop the War*, 418 U. S. 208, 217 (1974). But if offended observers could bring suit, this rule would be rendered meaningless: Who, after all, would have trouble recasting a generalized grievance about governmental action into an “I-take-offense” argument for standing? Similarly, this Court has long “adhered to the rule that a party ‘generally must assert his own legal rights and interests, and cannot rest his claim to relief on the legal rights or interests of third parties.’” *Kowalski v. Tesmer*, 543 U. S. 125, 129 (2004). We depart from this rule only where the party seeking to invoke the judicial power “has a ‘close’ relationship with the person who possesses the right” and “there is a ‘hindrance’ to the possessor’s ability to protect his own interests.” *Id.*, at 130. Applying these principles in *Kowalski*, this Court held that attorneys lacked standing to assert the rights of indigent defendants. *Id.*, at 127. And in *Whitmore*, we rejected a third party’s effort to appeal another person’s death sentence. 495 U. S., at 151. But if offended observers could sue, the attorneys in *Kowalski* might have simply claimed they were “offended” by Michigan’s procedure for appointing appellate counsel, and the third party in *Whitmore* could have just said he was offended (as he surely was) by the impending execution. None of this Court’s limits on third-party standing would really matter.

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Offended observer standing cannot be squared with this Court’s longstanding teachings about the limits of Article III. Not even today’s dissent seriously attempts to defend

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it. So at this point you might wonder: How *did* the lower courts in these cases indulge the plaintiffs’ “offended observer” theory of standing? And why have other lower courts done similarly in other cases?

The truth is, the fault lies here. Lower courts invented offended observer standing for Establishment Clause cases in the 1970s in response to this Court’s decision in *Lemon v. Kurtzman*, 403 U. S. 602 (1971). *Lemon* held that whether governmental action violates the Establishment Clause depends on its (1) purpose, (2) effect, and (3) potential to “‘excessive[ly] . . . entangl[e]’” church and state, *id.*, at 613, a standard this Court came to understand as prohibiting the government from doing anything that a “‘reasonable observer’” might perceive as “endorsing” religion, *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U. S. 573, 620–621 (1989) (opinion of Blackmun, J.); *id.*, at 631 (O’Connor, J., concurring in part and concurring in judgment). And lower courts reasoned that, if the Establishment Clause forbids anything a reasonable observer would view as an endorsement of religion, then such an observer must be able to sue. *Moore v. Bryant*, 853 F. 3d 245, 250 (CA5 2017). Here alone, lower courts concluded, though never with this Court’s approval, an observer’s offense must “suffice to make an Establishment Clause claim justiciable.” *Suhre v. Haywood Cty.*, 131 F. 3d 1083, 1086 (CA4 1997).

As today’s plurality rightly indicates in Part II–A, however, *Lemon* was a misadventure. It sought a “grand unified theory” of the Establishment Clause but left us only a mess. See *ante*, at 60 (plurality opinion). How much “purpose” to promote religion is too much (are Sunday closing laws that bear multiple purposes, religious and secular, problematic)? How much “effect” of advancing religion is tolerable (are even incidental effects disallowed)? What does the “entanglement” test add to these inquiries? Even beyond all that, how “reasonable” must our “reasonable observer”

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be, and what exactly qualifies as impermissible “endorsement” of religion in a country where “In God We Trust” appears on the coinage, the eye of God appears in its Great Seal, and we celebrate Thanksgiving as a national holiday (“to Whom are thanks being given”)? *Harris v. Zion*, 927 F. 2d 1401, 1423 (CA7 1991) (Easterbrook, J., dissenting). Nearly half a century after *Lemon* and, the truth is, no one has any idea about the answers to these questions. As the plurality documents, our “doctrine [is] in such chaos” that lower courts have been “free to reach almost any result in almost any case.” McConnell, Religious Participation in Public Programs: Religious Freedom at a Crossroads, 59 U. Chi. L. Rev. 115, 119 (1992). Scores of judges have pleaded with us to retire *Lemon*, scholars of all stripes have criticized the doctrine, and a majority of this Court has long done the same. *Ante*, at 50–51 (plurality opinion). Today, not a single Member of the Court even tries to defend *Lemon* against these criticisms—and they don’t because they can’t. As Justice Kennedy explained, *Lemon* is “flawed in its fundamentals,” has proved “unworkable in practice,” and is “inconsistent with our history and our precedents.” *County of Allegheny*, 492 U. S., at 655, 669 (opinion concurring in judgment in part and dissenting in part).

In place of *Lemon*, Part II–D of the plurality opinion relies on a more modest, historically sensitive approach, recognizing that “the Establishment Clause must be interpreted by reference to historical practices and understandings.” *Ante*, at 61 (quoting *Town of Greece v. Galloway*, 572 U. S. 565, 576 (2014) (internal quotation marks omitted); see also *ante*, at 68–71 (KAVANAUGH, J., concurring). So, by way of example, the plurality explains that a state legislature may permissibly begin each session with a prayer by an official chaplain because “Congress for more than 200 years had opened its sessions with a prayer and . . . many state legislatures had followed suit.” *Ante*, at 60 (discussing *Marsh v. Chambers*, 463 U. S. 783 (1983), and *Town of Greece*, 572 U. S.

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565). The constitutionality of a practice doesn't depend on some artificial and indeterminate three-part test; what matters, the plurality reminds us, is whether the challenged practice fits "'within the tradition'" of this country. *Ante*, at 63 (citing *Town of Greece*, 572 U. S., at 577).

I agree with all this and don't doubt that the monument before us is constitutional in light of the Nation's traditions. But then the plurality continues on to suggest that "long-standing monuments, symbols, and practices" are "presumpt[ively]" constitutional. *Ante*, at 52. And about that, it's hard not to wonder: How old must a monument, symbol, or practice be to qualify for this new presumption? It seems 94 years is enough, but what about the Star of David monument erected in South Carolina in 2001 to commemorate victims of the Holocaust, or the cross that marines in California placed in 2004 to honor their comrades who fell during the War on Terror? And where exactly in the Constitution does this presumption come from? The plurality does not say, nor does it even explain what work its presumption does. To the contrary, the plurality proceeds to analyze the "presumptively" constitutional memorial in these cases for its consistency with "'historical practices and understandings'" under *Marsh* and *Town of Greece*—exactly the same approach that the plurality, quoting *Town of Greece*, recognizes "'must be'" used *whenever* we interpret the Establishment Clause. *Ante*, at 61; see also *ante*, at 69–71 (KAVANAUGH, J., concurring). Though the plurality does not say so in as many words, the message for our lower court colleagues seems unmistakable: Whether a monument, symbol, or practice is old or new, apply *Town of Greece*, not *Lemon*. Indeed, some of our colleagues recognize this implication and blanch at its prospect. See *ante*, at 68 (BREYER, J., concurring); *ante*, at 73 (KAGAN, J., concurring in part) (declining to join Parts II–A and II–D); *post*, at 89–90, n. 2 (GINSBURG, J., dissenting). But if that's the real message of the plurality's opinion, it seems to me exactly right—because what matters

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when it comes to assessing a monument, symbol, or practice isn't its age but its compliance with ageless principles. The Constitution's meaning is fixed, not some good-for-this-day-only coupon, and a practice consistent with our Nation's traditions is just as permissible whether undertaken today or 94 years ago.

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With *Lemon* now shelved, little excuse will remain for the anomaly of offended observer standing, and the gaping hole it tore in standing doctrine in the courts of appeals should now begin to close. Nor does this development mean colorable Establishment Clause violations will lack for proper plaintiffs. By way of example only, a public school student compelled to recite a prayer will still have standing to sue. See *School Dist. of Abington Township v. Schempp*, 374 U. S. 203, 224, n. 9 (1963). So will persons denied public office because of their religious affiliations or lack of them. And so will those who are denied government benefits because they do not practice a favored religion or any at all. *Texas Monthly, Inc. v. Bullock*, 489 U. S. 1, 7–8 (1989) (plurality opinion). On top of all that, States remain free to supply other forms of relief consistent with their own laws and constitutions.

Abandoning offended observer standing will mean only a return to the usual demands of Article III, requiring a real controversy with real impact on real persons to make a federal case out of it. Along the way, this will bring with it the welcome side effect of rescuing the Federal Judiciary from the sordid business of having to pass aesthetic judgment, one by one, on every public display in this country for its perceived capacity to give offense. It's a business that has consumed volumes of the federal reports, invited erratic results, frustrated generations of judges, and fomented "the very kind of religiously based divisiveness that the Establishment Clause seeks to avoid." *Van Orden v. Perry*, 545 U. S. 677, 704 (2005) (BREYER, J., concurring in judgment). Courts

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applying *Lemon*'s test have upheld Ten Commandment displays and demanded their removal; they have allowed memorial crosses and insisted that they be razed; they have permitted Christmas displays and pulled the plug on them; and they have pondered seemingly endlessly the inclusion of "In God We Trust" on currency or similar language in our Pledge of Allegiance. No one can predict the rulings—but one thing is certain: Between the challenged practices and the judicial decisions, just about everyone will wind up offended.

Nor have we yet come close to exhausting the potential sources of offense and federal litigation *Lemon* invited, for what about the display of the Ten Commandments on the frieze in our own courtroom or on the doors leading into it? Or the statues of Moses and the Apostle Paul next door in the Library of Congress? Or the depictions of the Ten Commandments found in the Justice Department and the National Archives? Or the crosses that can be found in the U. S. Capitol building? And all that just takes us mere steps from where we sit. In light of today's decision, we should be done with this business, and our lower court colleagues may dispose of cases like these on a motion to dismiss rather than enmeshing themselves for years in intractable disputes sure to generate more heat than light.

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In a large and diverse country, offense can be easily found. Really, most every governmental action probably offends *somebody*. No doubt, too, that offense can be sincere, sometimes well taken, even wise. But recourse for disagreement and offense does not lie in federal litigation. Instead, in a society that holds among its most cherished ambitions mutual respect, tolerance, self-rule, and democratic responsibility, an "offended viewer" may "avert his eyes," *Erznoznik v. Jacksonville*, 422 U. S. 205, 212 (1975), or pursue a political solution. Today's decision represents a welcome step to-

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ward restoring this Court’s recognition of these truths, and I respectfully concur in the judgment.

JUSTICE GINSBURG, with whom JUSTICE SOTOMAYOR joins, dissenting.

An immense Latin cross stands on a traffic island at the center of a busy three-way intersection in Bladensburg, Maryland.¹ “[M]onumental, clear, and bold” by day, App. 914, the cross looms even larger illuminated against the night-time sky. Known as the Peace Cross, the monument was erected by private citizens in 1925 to honor local soldiers who lost their lives in World War I. “[T]he town’s most prominent symbol” was rededicated in 1985 and is now said to honor “the sacrifices made [in] all wars,” *id.*, at 868 (internal quotation marks omitted), by “all veterans,” *id.*, at 195. Both the Peace Cross and the traffic island are owned and maintained by the Maryland-National Capital Park and Planning Commission (Commission), an agency of the State of Maryland.

Decades ago, this Court recognized that the Establishment Clause of the First Amendment to the Constitution demands governmental neutrality among religious faiths, and between religion and nonreligion. See *Everson v. Board of Ed. of Ewing*, 330 U. S. 1, 15 (1947). Numerous times since, the Court has reaffirmed the Constitution’s commitment to neutrality. Today the Court erodes that neutrality commitment, diminishing precedent designed to preserve individual liberty and civic harmony in favor of a “presumption of constitutionality for longstanding monuments, symbols, and practices.” *Ante*, at 52 (plurality opinion).²

¹ A photograph of the monument and a map showing its location are reproduced in the Appendix, *infra*, at 105–106.

² Some of my colleagues suggest that the Court’s new presumption extends to all governmental displays and practices, regardless of their age. See *ante*, at 70–71 (KAVANAUGH, J., concurring); *ante*, at 78 (THOMAS, J., con-

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The Latin cross is the foremost symbol of the Christian faith, embodying the “central theological claim of Christianity: that the son of God died on the cross, that he rose from the dead, and that his death and resurrection offer the possibility of eternal life.” Brief for Baptist Joint Committee for Religious Liberty et al. as *Amici Curiae* 7 (Brief for *Amici* Christian and Jewish Organizations). Precisely because the cross symbolizes these sectarian beliefs, it is a common marker for the graves of Christian soldiers. For the same reason, using the cross as a war memorial does not transform it into a secular symbol, as the Courts of Appeals have uniformly recognized. See *infra*, at 97–98, n. 10. Just as a Star of David is not suitable to honor Christians who died serving their country, so a cross is not suitable to honor those of other faiths who died defending their nation. Soldiers of all faiths “are united by their love of country, but they are not united by the cross.” Brief for Jewish War Veterans of the United States of America, Inc., as *Amicus Curiae* 3 (Brief for *Amicus* Jewish War Veterans).

By maintaining the Peace Cross on a public highway, the Commission elevates Christianity over other faiths, and religion over nonreligion. Memorializing the service of American soldiers is an “admirable and unquestionably secular” objective. *Van Orden v. Perry*, 545 U.S. 677, 715 (2005) (Stevens, J., dissenting). But the Commission does not serve that objective by displaying a symbol that bears “a starkly sectarian message.” *Salazar v. Buono*, 559 U.S. 700, 736 (2010) (Stevens, J., dissenting).

curing in judgment); *ante*, at 86 (GORSUCH, J., concurring in judgment). But see *ante*, at 67–68 (BREYER, J., joined by KAGAN, J., concurring) (“‘[A] more contemporary state effort’ to put up a religious display is ‘likely to prove divisive in a way that [a] longstanding, pre-existing monument [would] not.’”). I read the Court’s opinion to mean what it says: “[R]etaining established, religiously expressive monuments, symbols, and practices is quite different from erecting or adopting new ones,” *ante*, at 57, and, consequently, only “longstanding monuments, symbols, and practices” enjoy “a presumption of constitutionality,” *ante*, at 52 (plurality opinion).

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I

A

The First Amendment commands that the government “shall make no law” either “respecting an establishment of religion” or “prohibiting the free exercise thereof.” See *Everson*, 330 U.S., at 15. Adoption of these complementary provisions followed centuries of “turmoil, civil strife, and persecutio[n], generated in large part by established sects determined to maintain their absolute political and religious supremacy.” *Id.*, at 8–9. Mindful of that history, the fledgling Republic ratified the Establishment Clause, in the words of Thomas Jefferson, to “buil[d] a wall of separation between church and state.” Draft Reply to the Danbury Baptist Association, in 36 Papers of Thomas Jefferson 254, 255 (B. Oberg ed. 2009) (footnote omitted).

This barrier “protect[s] the integrity of individual conscience in religious matters.” *McCreary County v. American Civil Liberties Union of Ky.*, 545 U.S. 844, 876 (2005). It guards against the “anguish, hardship and bitter strife,” *Engel v. Vitale*, 370 U.S. 421, 429 (1962), that can occur when “the government weighs in on one side of religious debate,” *McCreary County*, 545 U.S., at 876. And while the “union of government and religion tends to destroy government and to degrade religion,” separating the two preserves the legitimacy of each. *Engel*, 370 U.S., at 431.

The Establishment Clause essentially instructs: “[T]he government may not favor one religion over another, or religion over irreligion.” *McCreary County*, 545 U.S., at 875. For, as James Madison observed, the government is not “a competent Judge of Religious Truth.” Memorial and Remonstrance Against Religious Assessments, 8 Papers of James Madison 295, 301 (R. Rutland, W. Rachal, B. Ripel, & F. Teute eds. 1973) (Memorial and Remonstrance). When the government places its “power, prestige [or] financial support . . . behind a particular religious belief,” *Engel*, 370

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U. S., at 431, the government's imprimatur "mak[es] adherence to [that] religion relevant . . . to a person's standing in the political community," *County of Allegheny v. American Civil Liberties Union, Greater Pittsburgh Chapter*, 492 U. S. 573, 594 (1989) (internal quotation marks omitted). Correspondingly, "the indirect coercive pressure upon religious minorities to conform to the prevailing officially approved religion is plain." *Engel*, 370 U. S., at 431. And by demanding neutrality between religious faith and the absence thereof, the Establishment Clause shores up an individual's "right to select any religious faith or none at all." *Wallace v. Jaffree*, 472 U. S. 38, 53 (1985).

B

In cases challenging the government's display of a religious symbol, the Court has tested fidelity to the principle of neutrality by asking whether the display has the "effect of 'endorsing' religion." *County of Allegheny*, 492 U. S., at 592. The display fails this requirement if it objectively "convey[s] a message that religion or a particular religious belief is favored or preferred." *Id.*, at 593 (internal quotation marks omitted; emphasis deleted).³ To make that determination, a court must consider "the pertinent facts and circumstances surrounding the symbol and its placement." *Buono*, 559 U. S., at 721 (plurality opinion); *id.*,

³JUSTICE GORSUCH's "no standing" opinion is startling in view of the many religious-display cases this Court has resolved on the merits. *E. g.*, *McCreary County*, 545 U. S. 844; *Van Orden*, 545 U. S. 677; *Stone v. Graham*, 449 U. S. 39 (1980) (*per curiam*). And, if JUSTICE GORSUCH is right, three Members of the Court were out of line when they recognized that "[t]he [Establishment] Clause forbids a city to permit the permanent erection of a large Latin cross on the roof of city hall," *Buono*, 559 U. S., at 715 (opinion of Kennedy, J., joined by ROBERTS, C. J., and ALITO, J.) (quoting *County of Allegheny*, 492 U. S., at 661 (second alteration in original), for no one, according to JUSTICE GORSUCH, should be heard to complain about such a thing. But see Brief for Law Professors as *Amici Curiae* (explaining why offended observer standing is necessary and proper).